Due Date: written paper and five annotated sources due 9 September 2026, 11:55pm.

***Note the instructions on annotating the source and the numbering conventions were updated 31-8-26 (See 'Annotating your Sources...' point 3 below), to add clarification when the source also includes page numbers and paragraph numbers.**

Assessment Overview

This assessment will be marked out of 100 and represents 30% of your final grade. You will submit a 1500-word written response to the question below. You will also submit annotated copies of your five sources (the principal case and your four secondary sources). Your annotations are not marked separately: they are read with your paper as evidence of one coherent process of research, reading and writing.

This means you will be submitting (6) six documents for this assessment.

A note on the subject matter. The case concerns indefinite immigration detention and includes medical detail about the plaintiff. If you find this material distressing, please contact the convenor; the University's support services are also listed on iLearn.

Question

In *Abdel-Hady v Commonwealth* (2026) 100 ALJR 742, the High Court unanimously held that neither the Commonwealth nor its officers had any defence to liability in false imprisonment for the plaintiff's immigration detention, even though the detaining officer had acted in conformity with the law as declared in a prior decision of the High Court. Gordon J, quoting *Trobridge v Hardy* (1955) 94 CLR 147, described false imprisonment as 'prima facie a grave infringement of the most elementary and important of all common law rights', and observed that the tort has played a fundamental role through the centuries 'in protecting the basic liberties of individuals against excesses of state power' (at [97]).

Australia has no national bill or charter of rights. The protection of fundamental human rights such as personal liberty therefore falls largely to the common law, and tort law is one of its principal instruments. Drawing on *Abdel-Hady* as your case study, critically evaluate the effectiveness of tort law in protecting fundamental human rights. Your answer should consider both what the decision demonstrates about the strengths of tort law as a protection for individual liberty and what it reveals, or leaves open, about the limits of tort law as a mechanism for protecting fundamental human rights.

As the written response is only 1500 words, we strongly recommend that your paper should develop no more than three to four key points in support of your clearly stated argument. Depth of analysis on fewer points will be rewarded over breadth of coverage (see rubric).

Requirements – Written Submission

- The word limit is 1,500 words, including headings, but excluding footnotes. There is no +/- 10%. Any words over 1500 words will not be read or marked
- Your paper should be double spaced in 12pt font; footnotes should be single spaced in 10pt font. A bibliography is not required. Footnotes should be in AGLC4 style.
- Your writing should be in plain English: clear language, short sentences, r unnecessary jargon.

Requirements – Annotated Sources

The Principal Case (prescribed portions only)

The principal case is *Abdel-Hady v Commonwealth* (2026) 100 ALJR 742. The full judgment is provided here and above. The High Court delivered five sets of reasons and you are NOT expected to read them all. Your engagement is required only with the following portions:

- The headnote (an aid to navigation; do not cite it as authority).
- Gageler CJ, Gleeson and Beech-Jones JJ at [1]-[29]: the three foundational principles, the facts and procedural history, and the Commonwealth's proposed defence.
- Gordon J at [52]-[77] and [86]-[118]: the facts, the defence recognised in *Queensland v Stradford*, the Commonwealth's proposed defence, the rule of law, the competing unfairness arguments, the rationale for the tort of false imprisonment, the confines of the proposed defence, and the overseas authorities;
- Steward J at [182]-[188]: describing the dilemma before the Court.

Everything you need from the principal case to answer the question is in the prescribed portions above. The remaining portions are not prescribed and the question does not ask about them. You may read them if you are curious, but a strong paper can be written without them, and your words are best spent on the analysis the question asks for.

Engagement with Sources

In addition to the principal case, you are required to annotate and engage with four (4) good quality (scholarly) secondary sources. Four is both the minimum and the maximum number of secondary sources: choose them carefully, because depth of engagement is what is rewarded. Therefore you will have five annotated sources (the principal case plus four secondary sources) analysed and mapped through to your paper. Any secondary sources referenced in your paper above the four annotated sources will not be marked.

Markers will look only at annotated sources that you cite in your paper, and they will be looking at how the cited annotations connect to the argument you make.

You may also draw on primary sources beyond *Abdel-Hady* (ie, other cases and legislation). These do not count towards your four secondary sources, and they do not need to be annotated or submitted.

Annotating your Sources (Adobe Acrobat Reader - free)

You will annotate the case and your four secondary sources as PDFs using Adobe Acrobat Reader (the free version), and submit the annotated PDFs with your paper to the submission link.

1. Download Adobe Acrobat Reader (free) from adobe.com if you do not already have it, and open your PDF in it. Download the case from the above link and save your chosen secondary sources as PDFs.
2. To annotate: select the passage and choose ‘Highlight text’ and type your annotation in the note.
3. Number every annotation. Begin each note with a number in square brackets following these conventions:
    - If your source does not have page numbers or paragraph numbers then number your sequentially within that source: [1], [2], [3] and so on.
    - If your sources does have page numbers or paragraph numbers, then the annotations do not need to be sequential within the source, but you must pinpoint using the page number or paragraph number **and** the annotation number in square brackets.
    - This is how your markers will find your annotations. Clarity and ease of locating the support for your claim is key, and an essential convention in legal practice.

4. An annotation is your thinking, not a summary. Record why the passage matters to your argument: what it supports, what it complicates, what you will do with it. One sharp sentence beats a paragraph of paraphrase.
5. Save the file (File > Save) - your notes are stored inside the PDF. Check before submitting (reopen the file and confirm your notes appear in the Comments panel).

There is no minimum number of annotations per source, but remember that the markers will only be looking at the annotations that are referenced in your written submission. It is not about the quantity of annotations. A small number of annotations demonstrating genuine insight and a clear connection to your paper is worth more than blanket highlighting.

Alternative methods (only if you cannot use Acrobat Reader): (1) annotate in Notability, GoodNotes or a similar tablet application, numbering each note, and export to PDF. (2) print the source, annotate by hand with numbered notes, and scan the front page plus every annotated page.

Citing your Annotations

A footnote to the principal case looks like this:

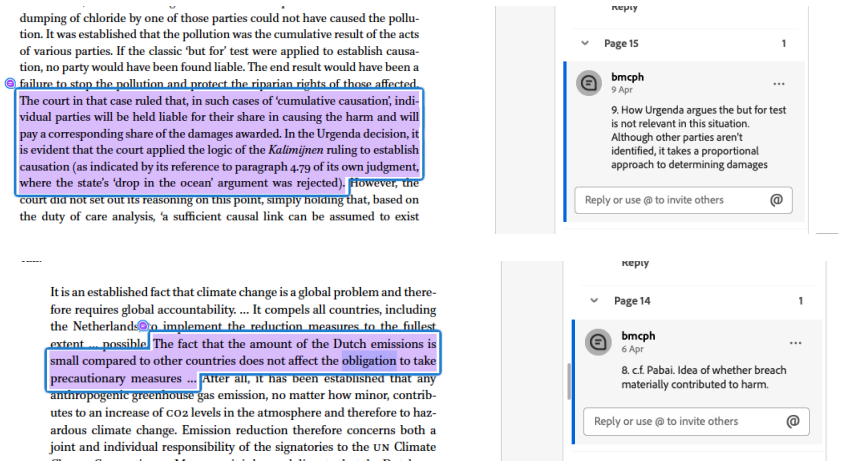
> *Abdel-Hady v Commonwealth* (2026) 100 ALJR 742, [97] (Gordon J), annotation [4].

A footnote to a secondary source looks like this:

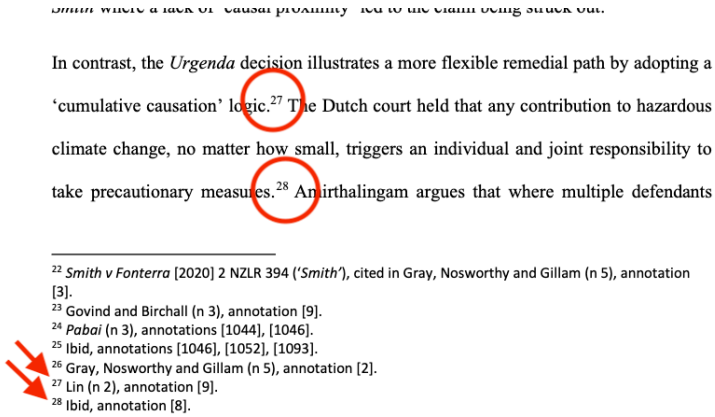
> Jason N E Varuhas, 'Lewis v Australian Capital Territory: Valuing Freedom' (2020) 42(1) *Sydney Law Review* 123, 125, annotations [3], [5].

A worked example on annotated sources mapped through to a written paper (note this assessment was on was on *Pabai v Commonwealth of Australia (No 2)* [2025] FCA 796):

Two extracts from annotated PDF of an article by Jolene Lin:



Mapped through to the written submission:


Smith where a lack of 'causal proximity' led to the claim being struck out.

In contrast, the *Urgenda* decision illustrates a more flexible remedial path by adopting a 'cumulative causation' logic.[27] The Dutch court held that any contribution to hazardous climate change, no matter how small, triggers an individual and joint responsibility to take precautionary measures.[28] Amirthalingam argues that where multiple defendants

[22] *Smith v Fonterra* [2020] 2 NZLR 394 ('*Smith*'), cited in Gray, Nosworthy and Gillam (n 5), annotation [3].
[23] Govind and Birchall (n 3), annotation [9].
[24] *Pabai* (n 3), annotations [1044], [1046].
[25] Ibid, annotations [1046], [1052], [1093].
[26] Gray, Nosworthy and Gillam (n 5), annotation [2].
[27] Lin (n 2), annotation [9].
[28] Ibid, annotation [8].

Submission

You will submit six documents to the Practice Based Task Assessment Submission link on iLearn:

1. Your 1,500-word paper (PDF or Word).

2. Your annotated copy of *Abdel-Hady v Commonwealth* (PDF containing your numbered annotations).

3. Your four annotated secondary sources (four PDFs, each containing your numbered annotations).

Annotated PDFs must be the saved files containing your notes. Papers submitted without all five annotated sources are incomplete, which will impact your marks.

Rubric

Criterion	HD	D	CR	P
Legal Knowledge & Understanding *(written paper)*	Exceptional understanding of the relevant legal principles, including the nature of the tort of false imprisonment. Legal concepts are articulated with precision and accuracy and the student demonstrates a nuanced appreciation of how those principles operate within the analysis.	Thorough and accurate understanding of the relevant legal principles, including the nature of the tort of false imprisonment. Legal concepts are stated correctly and are deployed in service of the argument rather than merely recited. Any errors are isolated, sit at the margins of the analysis, and do not affect the core reasoning.	Sound understanding of the core legal principles. The elements of the tort and the effect of the decision are accurate in the main, although the treatment may be uneven: some concepts are handled with confidence while others are stated imprecisely or left undeveloped. Errors are limited and do not undermine the argument as a whole.	Adequate understanding of the basic legal principles. The paper correctly identifies the tort and the outcome of the case, but understanding is inconsistent: accurate statements sit alongside imprecision or gaps, and legal concepts tend to be recited rather than used. Errors are noticeable, but the core of the account is recognisably correct.
Critical Engagement and Analysis *(written paper and cited annotations)*	The annotations and the paper function as a coherent whole. The student's commentary on the sources demonstrates genuine insight into how the	The annotations show genuine thinking about the sources, and that thinking is carried into the paper with only occasional gaps in the mapping. In the paper,	The annotations record analytical responses to the sources rather than summary, and most cited annotations connect to the argument, although the connection is	The required mapping exists and is honest. Annotations are numbered, cited and relevant, but they are largely descriptive, recording what a source says rather

	material supports, complicates, or shapes their argument, and that insight is carried through into the paper in a way that is clearly traceable through the mapping. Sources are used purposefully and precisely: the student draws on what they need from each source and deploys it in the paper to do specific analytical work. Where multiple sources are brought to bear on a point, the student demonstrates an understanding of how they relate to each other. The overall impression is of a student who has thought through their sources and built an argument from that thinking.	sources are used purposefully: the student draws on what the argument needs from each source and deploys it to advance the analysis, although the deployment is not always precise, and some cited material does no real analytical work. The student begins to bring sources into relation with one another, although those connections may not be sustained across the paper. The overall impression is of an argument built from the sources, with occasional passages where the argument and the sources come apart.	at times asserted rather than demonstrated. In the paper, source use is serviceable but uneven: sources are cited in support of points rather than deployed to do specific analytical work, and the student tends to take each source as a whole rather than drawing precisely on what the argument requires. Sources are engaged accurately but individually; where relations between them exist, they are noted rather than used. The overall impression is of an argument informed by the sources rather than built from them.	than why it matters to the argument. In the paper, sources appear as general support: they are cited to show that reading has occurred, or to confirm a point already asserted, rather than to advance the analysis, and the paper's argument could largely be made without them. The annotations and the paper run in parallel rather than functioning as evidence of one process.
Written Expression *(written paper)*	The writing is precise, clear, and economical. Sentences are short and purposeful. The student uses plain English throughout, avoiding unnecessary jargon and convoluted	The writing is clear and generally concise. Sentences are mostly short and purposeful, and the argument can be followed on a first read. Occasional wordiness,	The writing is competent and generally clear, though there may be inconsistency in style. Some sentences require re-reading, and some passages are wordy, repetitive or imprecise, but	The writing communicates the argument, but unevenly. Meaning is obscured in places by convoluted structure, vague or inflated language, or errors of expression, and the

	sentence structures. The argument is easy to follow not because it is simple but because the writing serves the analysis. The reader never has to re-read a sentence to understand its meaning.	jargon or awkward construction is present but does not obscure meaning.	the argument remains identifiable and meaning is recoverable throughout.	reader must supply some of the work, but the paper as a whole can be understood.
Follows Task Requirements *(written paper and annotations)*	All requirements are met and the citation trail never makes the marker work. All six documents are submitted and complete. Footnotes are consistently accurate to AGLC4, including pinpoints and annotation numbers. Annotations are numbered cleanly within each source, and cited annotations are easily matched between the paper and the source.	All requirements are met and the citation trail works throughout. All six documents are submitted and complete. Isolated lapses of AGLC4 are present, but they never impede the marker in locating a source, a pinpoint or a cited annotation.	All requirements are met and the citation trail holds, but imperfectly. All six documents are submitted and mostly complete. Notable errors of AGLC4 are present, or occasional untidiness in annotation numbering, obliging the marker to work at times to follow the trail.	Either a notable departure from the requirements (for example, a missing annotated source, patches of unnumbered or misnumbered annotations, or a breach of the word limit), or the requirements are met but referencing falls well short of AGLC4 in substance, or the marker must repeatedly reconstruct the trail between citations and the source.

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◄ Instructions on uploading a video to Echo and sharing a link

Jump to activity

Practice-Based Task: Submission Link ▶